



MEMORANDUM

TO: Mayor Patrick Collins and City of Cheyenne Council Members
FROM: Robin Lockman, City Treasurer
DATE: April 18, 2022
SUBJECT: Re-Appropriation to be considered for approval

On May 9, 2022, the Governing Body will be referring a resolution to the Finance Committee to re-appropriate funds for the Fiscal Year (FY) 2022 City of Cheyenne Budget per W.S. 16-4-112 and 16-4-113. Below is more detailed information regarding this re-appropriation request.

GENERAL FUND RESERVES REQUEST

Public Defender Budget Increase

The City has budgeted a total of \$100,000 in Fiscal Year 2022, which includes an additional \$50,000 approved by Council on January 10, 2022; however, public defender costs have continued to exceed expectations with the significant increase from \$4,500 per month last fiscal year to an average of nearly \$11,000 per month this fiscal year. A total of \$97,929 has been spent through the end of March. I am proposing an additional increase to this General Fund line item of \$27,000 to get through the remainder of the fiscal year.

Nuisance Abatement Budget Increase

The City partnered with the Wyoming Department of Transportation and contracted with S&S Builders to install rip rap and concrete to prevent homeless population habitation under the Lincolnway and Missile Drive Crow Creek underpass structure. This will prevent bridge damage and promote a safer community. A \$31,250 increase to the nuisance abatement budget is being requested to pay for the work completed.

Shelter Housing and Care of Animals

Per City Contract #7464 with the Cheyenne Animal Shelter (CAS), the City must pay CAS a daily rate of \$45 per animal for continued shelter housing and care services beyond ten (10) days as ordered by the court. On January 4, 2022, Animal Control received a dispatch call requesting assistance at the Candlewood Suites regarding an animal cruelty case. They found 12 adult dogs and puppies in a wooden box on top of a trailer and the temperature was below freezing. The

owners did not voluntarily relinquish their rights to the animals and therefore the City was responsible for paying the cost for housing and care services after 10 days. An increase of \$16,200 to the Animal Control Division professional services budget is being requested to pay for these expenses.

Cheyenne Police Department Non-Insured Loss

The Cheyenne Police Department (CPD) has had ten (10) incidents so far this fiscal year occur where the repair expenses are less than the City's deductible limit. Therefore, the CPD must pay for the repairs directly. An \$11,955 increase to the CPD's non-insured loss budget is being requested to pay for repair expenses for the following incidents:

- An employee was at a gas station and had to back up because the exit was blocked by a tow truck. While backing up, this employee backed into a dumpster causing damage to the rear of the vehicle.
- An employee was transporting a vehicle to BearCom Inc. in Greeley, Colorado, and noticed that the front passenger side door glass was cracked.
- An employee's vehicle was parked in the driveway of his home when the back window was broken out.
- An employee was escorting American Medical Response (AMR) to the flight for life pad which he believed was still located off Evans Ave. The employee pulled in front of the ambulance to block traffic. The flight for life pad is no longer located on Evans Ave. and the ambulance continued straight through the intersection and the employee's vehicle was struck by the ambulance.
- An employee was turning onto the north entrance to the CPD parking structure when he observed some damage to the east side of the valley pan at the entrance. The employee tried to avoid it and turned into the west side of the valley pan and he hit a pothole which caused damage to the front right tire, skid plate, bumper cover, grille and possibly the hood.
- An employee was pursuing a suspect when a spare tire flew out of the bed of the suspect's vehicle and landed in the middle of the street. The employee tried to miss the tire but hit it on the driver side of the vehicle.
- An employee was conducting surveillance when she heard a loud noise and then observed the rear passenger window on the vehicle had been damaged. The window sustained an approximate one-inch hole and the rest of the window was cracked.
- An employee found damage to the front fender of his vehicle. He believes the damage occurred after a snowstorm when he drove through snow and ice in an alley.
- An employee was in a vehicle pursuit and ran over spike strips in the roadway. Damage occurred to the front right tire.
- An employee was driving westbound on Lincolnway when his passenger mirror hit the driver's side mirror of a parked Fire Department vehicle.

Increase in Jail Costs

The costs to house inmates at the county jail are exceeding the anticipated budget. The CPD has paid the county \$394,840 for inmate housing services for the months of July 2021 through March 2022. With a quarter of the fiscal year remaining, it is anticipated these expenses will exceed the budgeted amount of \$466,000. I am requesting a \$75,000 increase to the CPD's budget for these expenses.

Hydraulic Power Unit for Elevator at Jack Spiker Parking Garage

Facilities Maintenance staff made an unanticipated, urgent repair to the elevator at the Jack Spiker Parking Garage due to the failure of the current hydraulic power unit. The cost to replace the failed hydraulic power unit is \$42,665.

City Contract with Cheyenne Animal Shelter (CAS)

The City budgeted \$450,000 for the Cheyenne Animal Shelter (CAS) FY 2022 contract; however, this amount was budgeted prior to the final negotiations and contract execution in December 2021. The increased contract is \$528,000 for shelter services. Therefore, an additional \$78,000 is being requested to cover expenses for the remainder of the fiscal year.

OTHER FUNDS - NEW GRANTS

The City of Cheyenne has received the following new grants. They are as follows, by fund:

Local and State Grants (011) – grants received

- \$2,500,000 – Wyoming Business Council – BRC Project Bison Microsoft Data Center
- \$10,000 – Visit Cheyenne – FY 2022 Marketing Grant

Law Enforcement Grants Fund (024) – additional grant funding

- \$59,740 – Cheyenne Regional Medical Center – Prevention Grant
- \$10,000 – Cheyenne Regional Medical Center – Law Enforcement Assisted Diversion (LEAD) Grant

Federal Grants Fund (025) – grants received

- \$133,422 – State Parks and Cultural Resources – FY 2022-23 Land and Water Conservation Fund Grant – Saddle Ridge Park Restroom
- \$9,021 – State Historic Preservation Office Grant – FY 2022 Historic Preservation Board and Staff Training

- \$7,667 – State Historic Preservation Office Grant – FY 2023 Architectural Assistance Program
- \$200,000 – Wyoming Department of Transportation STUP Grant – LCCC and Greenway Underpass Project

OTHER FUNDS – NEW REVENUE AND RESERVES REQUESTS

- \$25,630 – One Percent Sales Tax Fund increase for the Fire Department’s grant match to pay for extraction equipment per Resolution 6121.
- \$48,000 – One Percent Sales Tax Fund increase for Fire Department staff to attend paramedic school and to pay for Colorado Fire Consortium professional services.
- \$10,000 – Recreation Programs Fund increase for gift shop supplies needed at Botanic Gardens.
- \$25,000 – Recreation Programs Fund increase for Parks maintenance supplies.

As always, if you have any questions, please give me a call at 637-6336 or email at rlockman@cheyennecity.org.

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION RE-APPROPRIATING THE FISCAL YEAR 2022 BUDGET OF THE CITY OF CHEYENNE ACCORDING TO THE PROVISIONS OF W.S. §§ 16-4-112 & 16-4-113."

BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:
That the Municipal Budget of the City of Cheyenne for Fiscal Year 2022 be re-appropriated as follows:

	BUDGET	(INCREASE/DECREASE)	REVISED
City Council	\$ 260,856	\$ -	\$ 260,856
Mayor	6,498,928	74,450	6,573,378
City Clerk	746,485	-	746,485
Public Works	4,117,800	42,665	4,160,465
Police	14,933,036	86,995	15,020,031
Fire	12,308,941	-	12,308,941
Community Recreation and Events	7,808,061	-	7,808,061
City Engineer	1,280,383	-	1,280,383
City Treasurer	809,388	-	809,388
Planning and Development	809,708	-	809,708
Miscellaneous	6,719,360	78,000	6,797,360
TOTAL GENERAL FUND	\$ 56,292,947	\$ 282,110	\$ 56,575,057
Weed and Pest	\$ 585,276	\$ -	\$ 585,276
Local and State Grants	7,914,027	2,510,000	10,424,027
Youth Alternatives Grants	947,181	-	947,181
Recreation Programs	1,577,059	35,000	1,612,059
Community Development Block Grant	1,403,543	-	1,403,543
Real Property Revolving	-	-	-
Law Enforcement Grants	911,232	69,740	980,972
Federal Grants	9,224,901	350,109	9,575,010
Transportation Planning	1,237,059	-	1,237,059
Transit	2,924,536	-	2,924,536
Juvenile Justice	79,195	-	79,195
Special Friends	85,236	-	85,236
Annexation Improvements	200,000	-	200,000
Self Insurance	25,000	-	25,000
Miscellaneous Agency Funds	611,027	-	611,027
TOTAL SPECIAL REVENUE FUNDS	\$ 27,725,272	\$ 2,964,849	\$ 30,690,121
Development Impact Fees	\$ 212,800	\$ -	\$ 212,800
One Percent Sales Tax	35,911,671	73,630	35,985,301
Specific Purpose Option Tax	18,145,215	-	18,145,215
Youth Activities/Ropes	18,221	-	18,221
Golf Facilities	295,540	-	295,540
TOTAL CAPITAL PROJECTS FUNDS	\$ 54,583,447	\$ 73,630	\$ 54,657,077
Fleet Maintenance	\$ 4,618,994	\$ -	\$ 4,618,994
Solid Waste Management	24,463,685	-	24,463,685
Civic Center	3,607,309	-	3,607,309
Ice & Events Center	904,075	-	904,075
TOTAL PROPRIETARY FUNDS	\$ 33,594,062	\$ -	\$ 33,594,062
Perpetual Care	\$ 3,000	\$ -	\$ 3,000
TOTAL PERMANENT FUND	\$ 3,000	\$ -	\$ 3,000
Fiduciary Fund	\$ 27,366	\$ -	\$ 27,366
TOTAL FIDUCIARY FUND	\$ 27,366	\$ -	\$ 27,366
TOTAL CITY	\$ 172,226,094	\$ 3,320,589	\$ 175,546,684
Water Enterprise	\$ 46,392,635	\$ -	\$ 46,392,635
Sewer Enterprise	22,165,773	-	22,165,773
TOTAL BOARD OF PUBLIC UTILITIES	\$ 68,558,408	\$ -	\$ 68,558,408
TOTAL APPROPRIATIONS	\$ 240,784,502	\$ 3,320,589	\$ 244,105,092

REVENUE SOURCE	REVISED	(INCREASE/DECREASE)	REVISED
Taxes and Special Assessments	\$ 13,052,000	\$ -	\$ 13,052,000
Intergovernmental	31,218,152	-	31,218,152
Fines and Forfeits	658,300	-	658,300
Licenses and Permits	3,107,540	-	3,107,540
Charges for Services	1,712,000	-	1,712,000
Miscellaneous	1,527,723	-	1,527,723
Interest	146,500	-	146,500
Transfers	1,573,810	-	1,573,810
Grants	480,000	-	480,000
Revenue from Reserves	2,816,922	282,110	3,099,032
TOTAL GENERAL FUND	\$ 56,292,947	\$ 282,110	\$ 56,575,057
Weed and Pest	\$ 585,276	\$ -	\$ 585,276
Local and State Grants	7,914,027	2,510,000	10,424,027
Youth Alternatives Grants	947,181	-	947,181
Recreation Programs	1,577,059	35,000	1,612,059
Community Development Block Grant	1,403,543	-	1,403,543
Real Property Revolving	-	-	-
Law Enforcement Grants	911,232	69,740	980,972
Federal Grants	9,224,901	350,109	9,575,010
Transportation Planning	1,237,059	-	1,237,059
Transit	2,924,536	-	2,924,536
Juvenile Justice	79,195	-	79,195
Special Friends	85,236	-	85,236
Annexation Improvements	200,000	-	200,000
Self Insurance	25,000	-	25,000
Miscellaneous Agency Funds	611,027	-	611,027
TOTAL SPECIAL REVENUE FUNDS	\$ 27,725,272	\$ 2,964,849	\$ 30,690,121
Development Impact Fees	\$ 212,800	\$ -	\$ 212,800
One Percent Sales Tax	35,911,671	73,630	35,985,301
Specific Purpose Option Tax	18,145,215	-	18,145,215
Youth Activities/Ropes	18,221	-	18,221
Golf Facilities	295,540	-	295,540
TOTAL CAPITAL PROJECTS FUNDS	\$ 54,583,447	\$ 73,630	\$ 54,657,077
Fleet Maintenance	\$ 4,618,994	\$ -	\$ 4,618,994
Solid Waste Management	24,463,685	-	24,463,685
Civic Center	3,607,309	-	3,607,309
Ice & Events Center	904,075	-	904,075
TOTAL PROPRIETARY FUNDS	\$ 33,594,062	\$ -	\$ 33,594,062
Perpetual Care	\$ 3,000	\$ -	\$ 3,000
TOTAL PERMANENT FUND	\$ 3,000	\$ -	\$ 3,000
Fiduciary Fund	\$ 27,366	\$ -	\$ 27,366
TOTAL FIDUCIARY FUND	\$ 27,366	\$ -	\$ 27,366
TOTAL CITY	\$ 172,226,094	\$ 3,320,589	\$ 175,546,684
Water Enterprise	\$ 46,392,635	\$ -	\$ 46,392,635
Sewer Enterprise	22,165,773	-	22,165,773
TOTAL BOARD OF PUBLIC UTILITIES	\$ 68,558,408	\$ -	\$ 68,558,408
TOTAL REVENUES	\$ 240,784,502	\$ 3,320,589	\$ 244,105,092

The sources of revenue increasing (decreasing) the budget of the General Fund are:

New Revenues	\$ -
Reserves	282,110
Total General Fund	\$ 282,110

PRESENTED, READ AND ADOPTED this _____ day of _____

PATRICK J. COLLINS, Mayor

(seal)

ATTEST:

KRISTINA F. JONES, City Clerk

CITY OF CHEYENNE

FY 2022 BUDGET REAPPROPRIATION - SUMMARY

To be approved at the May 9, 2022 Council Meeting

GENERAL FUND	Source of Funds:			
	Carryover Reserves	Additional Revenue	Inter-Department/ Transfers	Total
Higher public defender costs than budgeted	\$ 27,000	\$ -	\$ -	\$ 27,000
Homeless Bridge Project with WYDOT	31,250	-	-	31,250
Animal Shelter housing and care of animals after 10 days per Contract 7464	16,200	-	-	16,200
Ten non-insured incidents under the deductible limit for Police	11,995	-	-	11,995
Higher than budgeted jail costs	75,000	-	-	75,000
Installing new hydraulic power unit for the elevator at the Jack R. Spiker Parking Facility	42,665	-	-	42,665
Cheyenne Animal Shelter's FY 2022 contract higher than original approved budget	78,000	-	-	78,000
TOTAL GENERAL FUND	\$ 282,110	\$ -	\$ -	\$ 282,110

CAPITAL PROJECTS FUNDS	Source of Funds:			
	Carryover Reserves	Additional Revenue		Total
One Percent Sales Tax Funds 020, 021, 022				
5% match for extraction equipment per Resolution 6121	\$ 25,630	\$ -	\$ -	\$ 25,630
Paramedic School and Colorado Fire Consortium	48,000	-	-	48,000
TOTAL CAPITAL PROJECTS FUNDS	\$ 73,630	\$ -	\$ -	\$ 73,630

SPECIAL REVENUE FUNDS	Source of Funds:			
	Carryover Reserves	Additional Revenue		Total
Local/State Grants Fund 011				
New Wyoming Business Council Grants - BRC Project Bison Microsoft Data Center	\$ -	\$ 2,500,000	\$ -	\$ 2,500,000
New 2022 Visit Cheyenne Marketing Grant	-	10,000	-	10,000
Recreation Fund 014				
Increase Botanic Gardens Gift Shop supplies budget	-	10,000	-	10,000
Increase Parks maintenance supplies budget	25,000	-	-	25,000
Law Enforcement Grants Fund 024				
Increase CRMC Prevention Grant	-	59,740	-	59,740
Increase CRMC LEAD Grant	-	10,000	-	10,000
Federal Grants Fund 025				
New Land and Water Conservation Grant - Saddle Ridge Park Restroom FY 2022-23	-	133,422	-	133,422
New SHPO Planning Grant - Historic Preservation Board and Staff Training Grant FY 2022	-	9,021	-	9,021
New SHPO Planning Grant - Architectural Assistance Program FY 2023	-	7,667	-	7,667
New WYDOT STUP Grant - LCCC Greenway Underpass	-	200,000	-	200,000
TOTAL SPECIAL REVENUE FUNDS	\$ 25,000	\$ 2,939,849	\$ -	\$ 2,964,849
TOTAL CITY FUNDS	\$ 380,740	\$ 2,939,849	\$ -	\$ 3,320,589
BOARD OF PUBLIC UTILITIES INCREASE				
		-		\$ -
TOTAL REAPPROPRIATION				\$ 3,320,589

GENERAL FUND RESERVES SUMMARY	
General Fund Unrestricted Reserve Use Request	\$ 282,110
Total General Fund Reserve Use Request	\$ 282,110